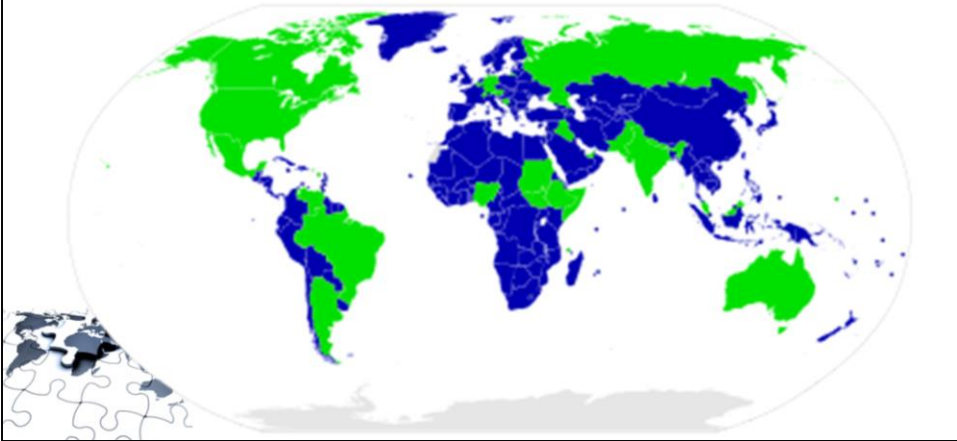




Forms of Governance

- How states divide (or not) political power
 - Unitary
 - Federal

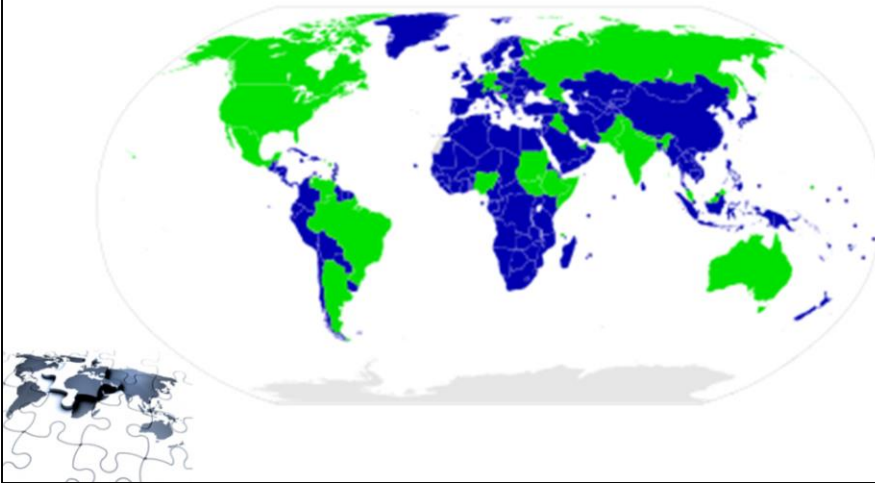


Each independent state organizes their own system of government. There are two basic categories of organizational structures: Unitary or Federal.

The map above shows the states of the world sorted into these two categories. The states shown in green are federal states, and the states shown in blue are unitary states.

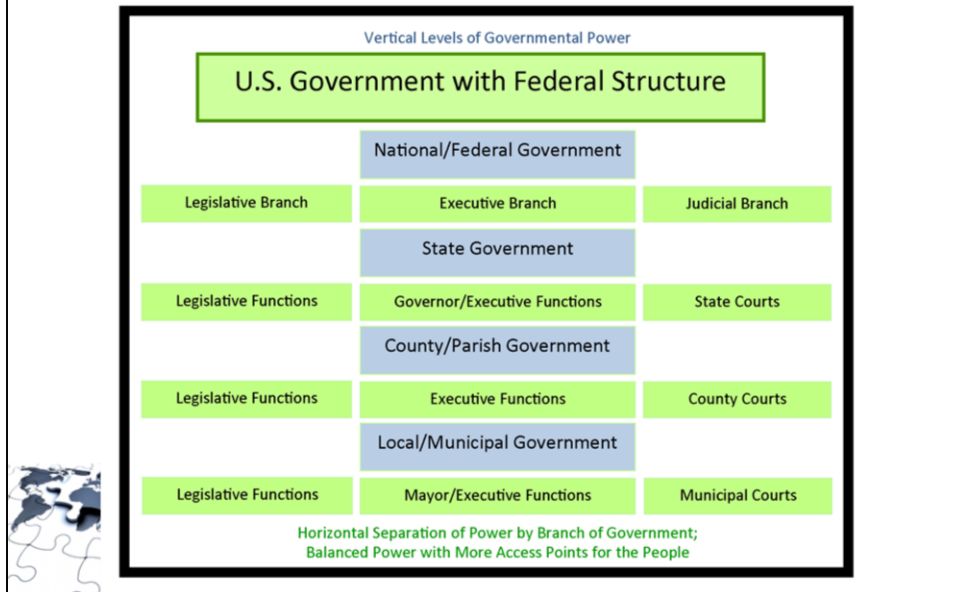
Federal States

- Division of power between central government and local governments



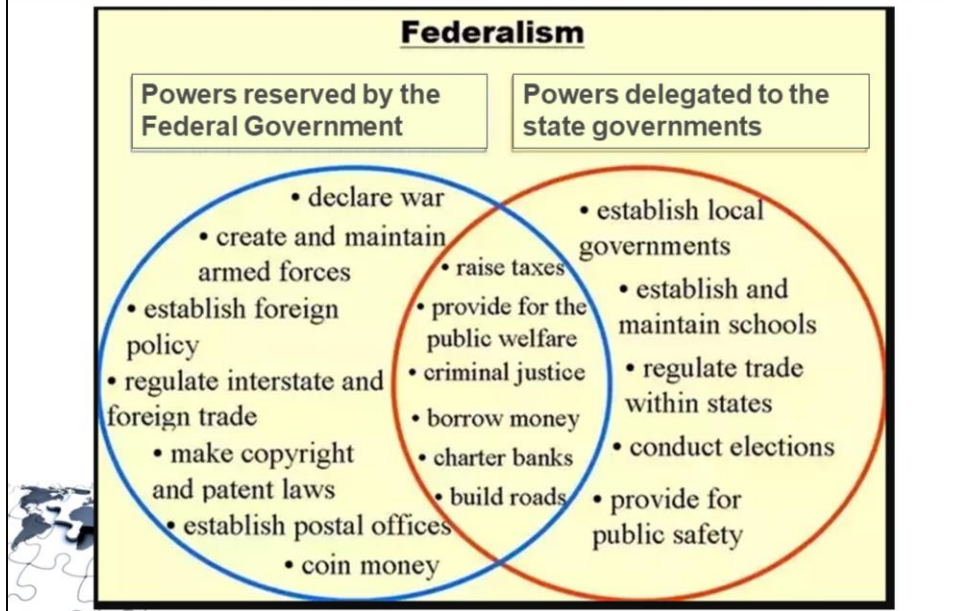
Federal states seek to distribute power to different parts of the state – local governments have control over local decisions, while the central government covers the big issues, such as foreign relations, war, and international trade.

Hierarchical government structure



Federal states have a hierarchical government structure. The Federal government is at the top of the structure. There are multiple states within the federal government. There are multiple counties within each state. There are multiple cities/municipal governments within each county. Each of these levels has their own representatives and make decisions that affect/are implemented at that particular level.

Dispersed Central Powers



The Venn diagram above shows the distribution of powers between the Federal Government (blue circle) and the US state governments (red circle). The area where the circles overlap are powers that both can do.

Only the federal government can declare war, maintain an army, establish foreign policy (policies regarding relationships with other countries), regulate trade between US states and international trade, protect intellectual property through copyright/patent laws, establish and maintain post offices (federal government buildings), and to coin/print money.

Only the states can establish local governments, establish and maintain schools (i.e., Texas Education Agency oversees public schools in the state of Texas), regulate trade within the state (and sales taxes), conduct elections (yes, even the presidential election is a responsibility of the state. This is why different states have different systems for voting and different voter laws – more on voting in later slides), and provide for public safety (law enforcement).

Both the federal government and the states may raise taxes (federal income tax, state income tax, state property tax, school district tax, sales tax, etc.), provide for public welfare (food stamps, Medicaid, social security, etc.),

criminal justice (court systems and state/federal prisons – federal crimes are called “felonies” and are handled by federal courts. Other crimes are state crimes and handled by the state criminal court system. Both the federal government and states can also borrow money, charter banks, and build infrastructure.

These divisions of power are itemized in the Constitution. The 10th amendment to the constitution said any issue not specifically addressed as the responsibility of the federal governments is left to the states to decide. Constitutional amendments (changes) are required for the federal government to take over decisions about issues that were previously delegated to the states, such as slavery. Prior to the US Civil War, states could decide for themselves whether or not slavery was permitted. The issue of slavery brought the fight about “states rights” vs. “federal rights” to a head, and as you know, the deadliest conflict in US history erupted between the states that were “pro” and the states that were “against” slavery. The states that seceded specifically mentioned the issue of slavery in their declarations of secession. During the war, the Federal government passed the 13th Amendment to the Constitution of the United States, which abolished the practice of slavery and made it illegal everywhere. Three amendments were made to the US Constitution during the Reconstruction period (the time of rebuilding the state following the Civil War) that addressed slavery, citizenship, and voting.

The Thirteenth Amendment, adopted in 1865, abolishes slavery or involuntary servitude except in punishment for a crime. The Fourteenth Amendment defines all people born in the United States as citizens, requires due process of law, and requires equal protection to all people. The Fifteenth Amendment prevents the denial of a citizen’s vote based on race, color, or previous condition of servitude. A history of violations of the 15th amendment are reasons for the federal government to oversee changes to voting laws in some states (more about that later in these notes).

Examples of Federal States

- United States
- Germany
- Mexico



The map above shows the states of Mexico. The Mexican government is also a federal state.

Unitary States

- Strong central government
 - Limited power of subordinate local governments



a **unitary government** or **unitary** state is a system of political organization with a central supreme government which holds the authority over and makes the decisions for subordinate local governments.

A unitary state is a state governed as a single power (located in the state's capital) in which the central government is ultimately supreme. The central government may create administrative divisions, but these sub-political units are only able to exercise the powers that the central government chooses to delegate, which are often limited. In most cases, laws and political decisions are made by the central government and then enforced across all parts of the state equally.

Positives of Unitary Governments

- Centripetal impact of strong central government, national identity
 - Reduces potential for separatist movements
- Efficiency of implementing laws/government services
- Efficiency in disaster response
- Fewer tax/government agencies



Unitary governments only have one level of government, which can be a centripetal force. If the central government is strong and there are limited or no local governments, there is less likelihood of the local governments wanting to do things differently. The central government can also be more efficient in implementing laws or creating/distributing government services since there is less duplication of these services by government agencies at different levels of government (there's only one level of government, so only the central government is providing the services, not the central government/provincial government/county government/city government/etc. all trying to coordinate together to provide government services such as education, healthcare, welfare, transportation, etc. Unitary states also have the potential to be more efficient in responding to disasters, as they are not coordinating the response between the different levels of government.

Likewise, there are fewer government agencies collecting taxes from the people; however, this does not mean the people will pay less taxes, as tax rates are determined by a number of factors. It simply means the government is more efficient in collecting taxes since there are not multiple agencies at different levels of government to divvy up the tax monies.

Negatives of Unitary Governments

- Disconnect between central government and some regions
 - **Minorities, isolated local areas**
- Domination of politics by predominant culture/ethnic group
- Exclusion of marginalized groups
 - **Standardization at state level diminishes local cultures and customs**
- Possible slow response to local issues, such as natural disasters, infrastructure issues, or needed public services





Examples of Unitary States

- May have participatory or authoritative governments
 - United Kingdom: Unitary Constitutional monarchy (Parliamentary system – participatory government)
 - China: Communist (one-party system - authoritative government)




Unitary states have strong central governments with limited or no local control among different regions. These governments may be either participatory (the people hold the power and exercise it through voting) or authoritative (the leaders hold the power and exercise it at their discretion). An example of a participatory unitary state is the United Kingdom. Members of Parliament (the legislature) are elected by the people, who have several choices of who to vote for among different political parties. If the people do not like the political actions of the leaders, they can vote them out of office. An example of an authoritative government is the Communist government of the People's Republic of China (PRC). The legal power of the Communist Party is guaranteed by the PRC Constitution and its position as the supreme political authority in the PRC is realized through its comprehensive control of the state, military, and media. This control makes it an oligarchy, where the political power is concentrated in the hands of a few select people. China has elections and administrative provinces, but those provinces do not have their own representative governments or self-governing status. This is one reason Hong Kong (a province of China that was formerly a colony of the United Kingdom) has seen significant protests in the past few months as the people demand more local autonomy from the Communist government.

But wait, how does the UK have local legislatures in Scotland and Northern

Ireland? How are they still considered unitary?

Here's the thing about "unitary" vs. "federal" – it's a matter of definition and intent. The UK is a "unitary state" in the sense that it has no entrenched separation of powers between different levels of government, all power is delegated from the central government. So, although the parliaments and assemblies exist in Scotland, Wales, and Northern Ireland are comparable in powers with sub-national units in some formally federal governments, they only exist because of legislation by the central government. The intent of the central government (Parliament in London) is unitary. The central government can (and has) dissolved the local assemblies (legislatures) if they so choose, thereby revoking that local control.

In contrast the US or Germany are formally federal states with the powers of the states and the central government defined and entrenched in the constitution and cannot be changed without special procedures necessary to change the constitution, not just regular legislation. In the US, any changes to the Constitution MUST be approved by 3/4 of all state legislatures (not the state congressmen, the actual legislatures within the states). Therefore, the intent of a federal state is that there is an irrevocable division of power.

In practice the difference between "unitary" and "federal" are not absolute but are rather a continuum. At the extreme federal end there is Switzerland, which is a confederation with sovereignty clearly embedded in its cantons with power delegated by them to the federal government, then there are federal countries with sub-national states like the US, Germany or Australia which declare they are federal in the constitution and formally define in it the powers of states and federal government. The next level down after that there are countries like Spain where the constitution gives communities the rights to form autonomous communities (their rough equivalent to states) but with less clear definition of what the powers are, then countries like the UK where significant powers (comparable to those of "states" in many federal countries) are devolved to other parliaments and assemblies, through to countries like France which has a formal devolved regional structure but with limited powers (and no powers of legislation) given to the regions, and finally states like Ireland where there is only limited local government with all powers clearly residing with the central government.

The Confederate System

- Strong local governments
- Limited power in central government
- Examples:
 - Switzerland – considered federal system, but an extreme version since the cantons (states) have a great amount of power, but the federal government is more powerful than a true confederate government would be.
 - United States under the Articles of Confederation (defunct)
 - The Confederate States of America (defunct)
 - European Union (maybe - not considered a single state, but rather a loose political and economic alliance of independent sovereign states, but closest existing example of a true confederation)



There is a third form of government structure – the Confederation system. The closest existing example of such a system today is the European Union, but there is debate among political scientists (people who study government) whether it should be considered a single state, or rather a loose alliance between independently sovereign states, which makes it a supranational organization. A **supranational organization** is a political, economic, or military alliance in which the power and influence of member states go above state boundaries or interests to share in decision making and vote on issues concerning the collective body (all members) – more on the topic of supranationalism later this unit.

In a confederation, the local government has the greatest amount of political power, and the central government is weak. For more information on such a system, please refer back to the history of the US under the Articles of Confederation in the “Political Patterns and Processes” notes.

Overlapping voting districts in the US

- US Congressional Districts
 - **House of Representatives**
- State legislature districts
- County governments
- City governments
- School districts



Each of the above voting districts have their own “voting district” – when you register to vote, you must show proof of your address. This allows the voting commissions to properly compile your ballot – for major elections, your ballot may have political races (two or more people competing for one political position) and referendums (votes on a specific issue, such as a bond or policy change) for each of the above districts, and they are all assembled into one “packet” for you to consider and select your choices. The districts for these individual political entities do not share boundaries – each has their own as they are based on different criteria.

In the 1960s, a law was passed that said people running for the US House of Representatives must be tied to one district (or sub-divided geographic location). Many local governments have similar laws – each “seat” (what we call the political position) of a city council, school district, county government, etc. is tied to a geographic location and one person represents that precinct (another term for district). The term “At large” means as a whole or general, so a person running for a position “at large” does not represent one sub-divided geographic area, but rather all of the areas within the greater political unit. US senators are “At large” – both of them represent the entire state.

Within states, there are congressional districts, state congressional districts,

county governments, city governments and school districts. There are over 1,000 school districts in the state of Texas, which do not oversee the operations of private or charter schools. School board members are elected, and property taxes within the state contribute to fund public school in the state. The map above shows just the school districts within our local area (Texas Education Agency's region 13). Schools districts are a form of "local control" – the local citizens get to vote on choices for education within their local area rather than the US Federal government making all those decisions, including curriculum, wages for faculty and staff, tax rates, buildings, school calendar, and much more. The federal and state governments, in turn, set "minimum standards", which are measured through testing and other data collection means.

The Texas Legislature

Texas has its own Constitution, Executive Branch (governor), Judicial branch (court system) and bicameral Legislature:

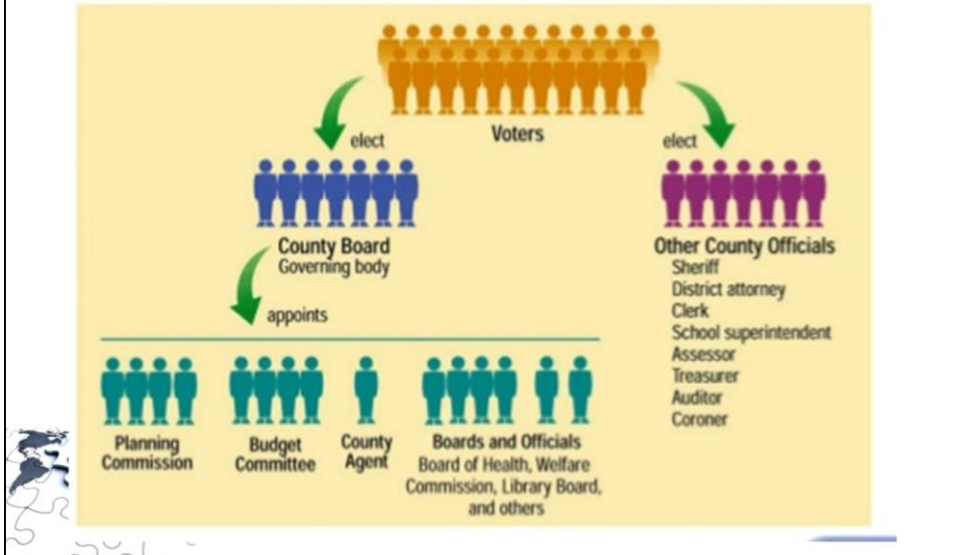
- Senate – 31 single-member districts
- Texas House – 150 single-member districts



If you want to find out who represents you for the US congress, Texas State Senate, Texas State House of Representatives, and the State Board of Education, use this link <https://wrm.capitol.texas.gov/home>

County governments

Typical County Government Structure



In Texas, county government delivers services through a variety of elected officials rather than through one central authority. The Texas Constitution provides a checks and balances system in which none of the county's elected officials is controlled by any other elected official; they answer only to the voters. There are 254 counties in Texas.

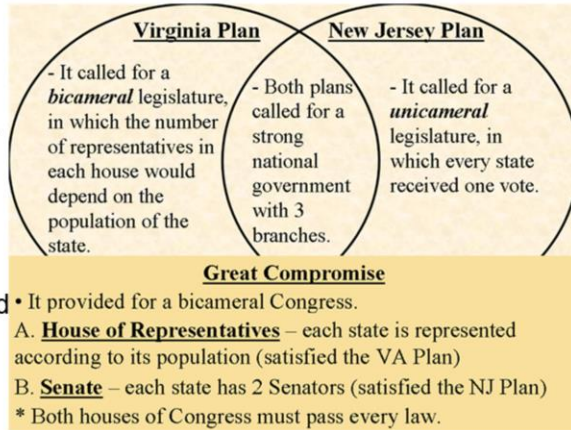
US Congressional Districts

- The Great Compromise of 1787

- **Two houses of Congress**

- Senate – equal representation (2 per state)
 - House of Representatives – proportional representation (based on population of the state)

- Issue of how to count slaves – 3/5 Compromise

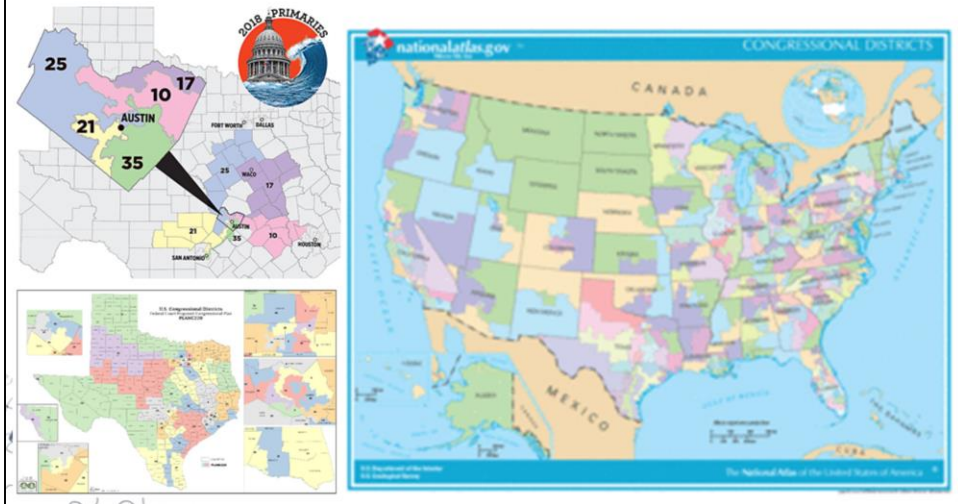


When the Constitutional Convention was meeting in the 1780s, the different states could not agree on how to balance power between small states and large states – in this case, “small” and “large” refer to population. The small states wanted equal representation because they knew that if they did not have that, they would always be outvoted. The large states, of course, wanted proportional representation based on the population of the state because it would give them an advantage. They compromised by created a two part legislature – one part based on equal representation (the Senate), and the other part based on population (House of Representatives). All bills (proposed laws) must be passed by **both** House and the Senate before going to the President (executive branch) to be signed into law.

This compromise led to another issue – how would slaves be counted? The Three-Fifths Compromise outlined the process for states to count slaves as part of the population in order to determine representation and taxation for the federal government. Every 5 slaves would count as 3 people in the population.

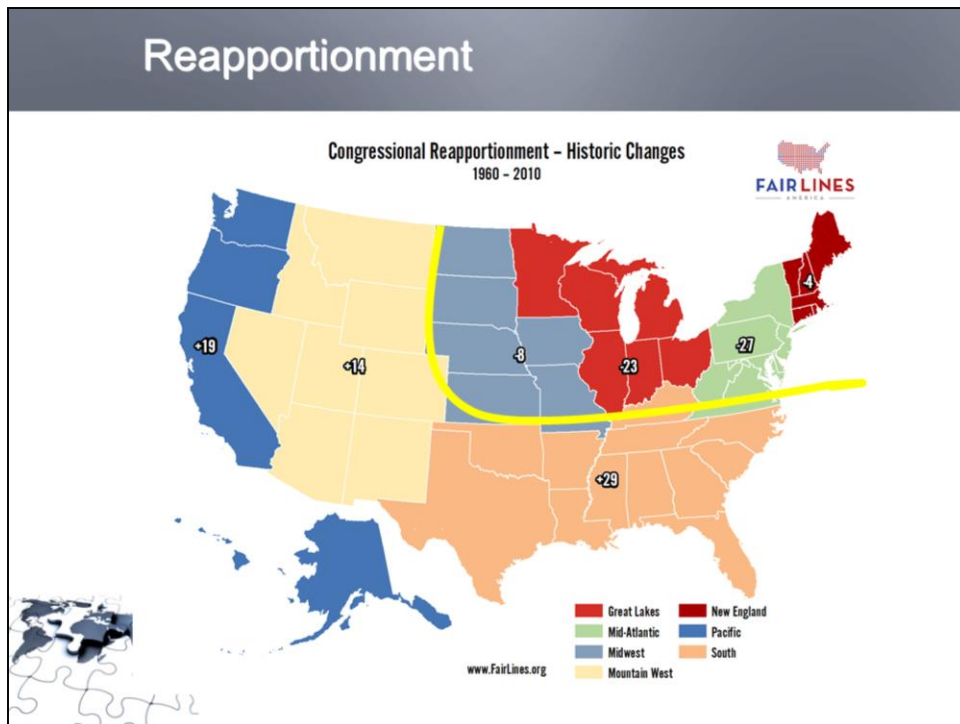
US Congressional Districts

- 435 members of the House of Representatives distributed based on population

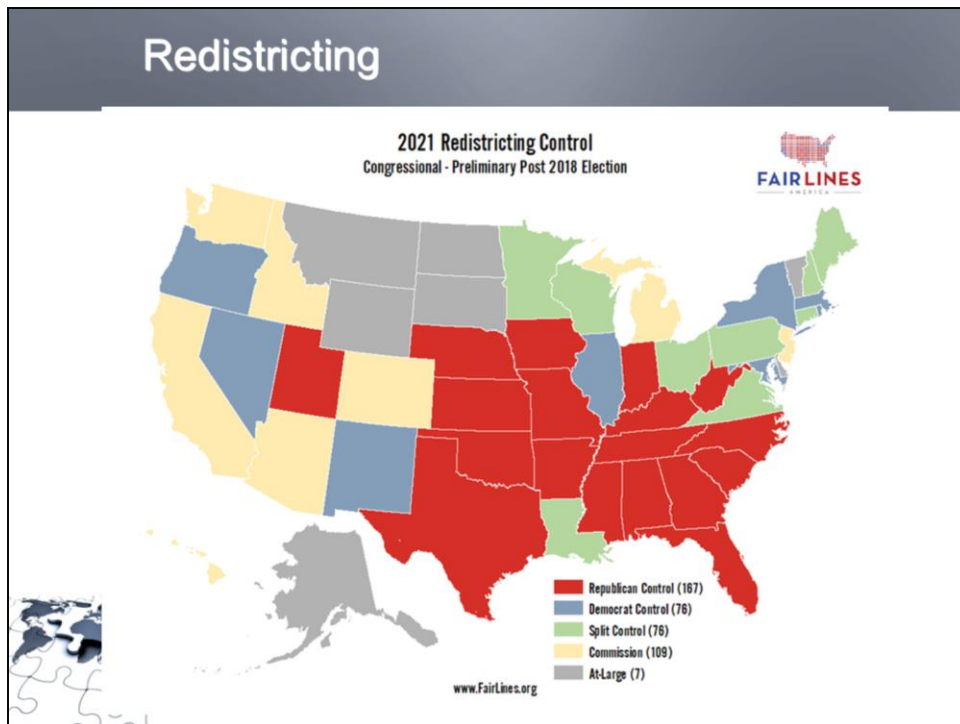


There are 435 members of the House of Representatives. This number does not change, but the number of representatives for each state does based on population changes. The decennial census (every 10 years) is used to **reapportion** seats in the House among the states based on the state's current population. States losing population may lose seats, while states gaining population may gain seats. In the last reapportionment, Texas gained 4 seats in the House. This meant the congressional districts for the state had to be redrawn.

The maps above show the current US Congressional districts. The map on the right shows the US as a whole, the map bottom left shows the US Congressional Districts in Texas (36 total), and the map above left shows Travis County – notice that Travis County is divided into 5 separate Congressional districts (this will be important in a little bit, so keep it in your head).



Re-apportionment is the re-distribution of seats in the House of Representatives that occurs following each census. Why does it matter? The population centers of the US are shifting – the North/north east is no longer the only major population center within the US. People are moving from the Rust Belt (the old industrial core in the northeast) to the Sunbelt (the south and western part of the country). Notice on the map above the shift in the number of seats for each region. The states to the north of the yellow line have all lost seats, while the states below and to the west of the yellow line have all gained seats. This means there has been a shift in political power as a result.



Redistricting is the process of drawing electoral district boundaries in the United States. A congressional act passed in 1967 requires that representatives for the US House of Representatives be elected from single-member districts, except when a state has a single representative, in which case one state-wide at-large election be held. After the census (done every 10 years), if the number of seats in the US House changes for a state, the state legislature must re-draw the boundaries of the congressional districts.

Each state determines how the districts are re-drawn. In some states, such as Texas, the political party with the most members in the state legislature have control over drawing the districts. States with split control means both houses of the respective state's legislature must approve the map, and one house is controlled by Democrats and the other Republicans (shown in green). In others, there are special bipartisan (representatives of both political parties) commissions in place to draw the boundaries (shown in tan). If the state only has one member in the House, they do not have separate Congressional districts – the boundaries are the same as the state's and the race is "at large" (shown in gray).

The map above shows which political party has control of redistricting in each state for the next reapportionment, based on the outcomes of the 2018 elections.

Gerrymandering



Gerrymandering is a practice intended to establish a political advantage for a particular party or group by manipulating district boundaries. The political group that draws the lines tries to draw them to their advantage for future elections. This can create “party-safe” seats that are an almost guarantee that the party’s candidate will win the election and can lead to congressional gridlock.

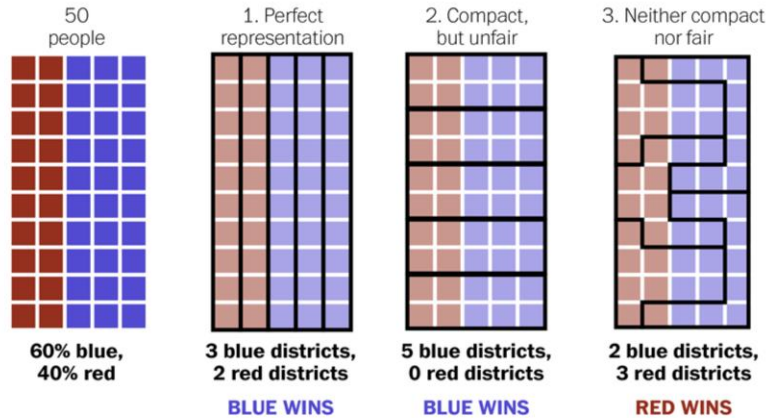
The term “gerrymandering” comes from a political cartoon - The term is named after Elbridge Gerry, who, as Governor of Massachusetts in 1812, signed a bill that created a partisan district in the Boston area that was compared to the shape of a salamander.

Gerrymandering is used to help or hinder a particular demographic, such as a political, ethnic, racial, linguistic, religious, or economic group in future election. It also is not solely a US phenomenon. It has happened in other countries as well, such as in Northern Ireland where boundaries were drawn to guarantee Protestant Unionist majorities and hinder the political power of the Catholics. It can also disenfranchise (deprive of the right to vote) marginalized populations.

How does Gerrymandering Work?

Gerrymandering, explained

Three different ways to divide 50 people into five districts



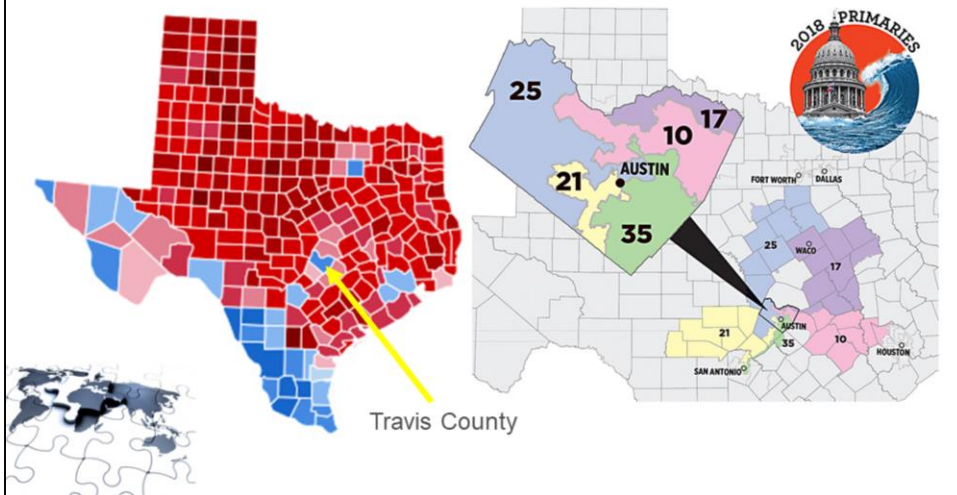
WASHINGTONPOST.COM/WONKBLOG

Adapted from Stephen Nass

Gerrymandering is the process of drawing boundary lines to give one political party an advantage over the other. The illustrations above show how gerrymandering works.

Gerrymandering

- Drawing political district boundaries to influence the outcome of elections



The goal of gerrymandering is to limit the political power of the other political group. One way to do this is to “stack” or “pack” as many people who are likely supporters of the rival political group into a single district so they only win one instead of several. Another way is to “crack” the rival party’s supporters across several districts so they are a minority and have almost no chance of winning an election in that district, thereby “wasting” their votes.

In 2011, the Congressional district boundaries in Texas were redrawn based on the 2010 Census. Tensions over Texas' oddly-drawn districts began to be battled out in court almost immediately after they were drawn in 2011 by the Republican-controlled Texas state legislature.

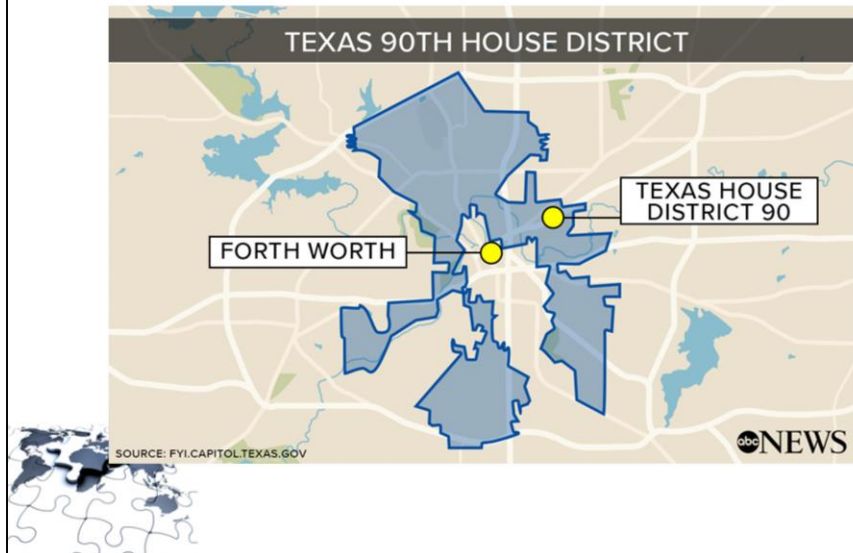
Why? The map on the left shows the results of the 2016 presidential election by county in Texas. Notice that Travis County (yellow arrow is pointing to it) is blue, surrounded by counties that are all red. This means Travis County voted Democrat, while the surrounding counties voted Republican. Travis County is the county just south of us, and is the county in which Austin is located. The map on the right shows the 5 congressional districts that cross through Travis County. The effect of these boundaries divides the population of Travis county (which is likely to vote Democrat based on demographics and prior votes) into 5 congressional districts and makes the democrat voters a minority in most of them

(chopped and wasted vote districts). The effect of these districts can give a significant advantage to one candidate over another – this effect was so profound in 2011 that in the 2012 general election, a democrat did not even run in District 17, which is drawn around one of the most conservative parts of the state and includes Waco, Bryan, and College Station (home of Texas A&M, which was an agricultural institution through its history). Districts are commonly drawn to divide the urban populations (which tend to vote more liberally/Democratic) among the greater rural areas of the state (which tend to vote more conservatively/Republican).

The districts can also be drawn in such a way to create minority-majority districts (where the majority of the people who live in the district are considered “minorities”).

Another issue of the 2011 redistricting in Texas was that districts were redrawn in such a way that a local long-serving Democratic member of Congress, Lloyd Doggett, was drawn out of his district as representatives have to live in the district they serve. This district change came as a surprise to some people who believed they were in one district, but discovered when they received their ballots that they had been reassigned into a new district with unfamiliar candidates. This confusion can lower voter participation. As for Lloyd Doggett, he ran in the new district that contained his home and won, though his margin of victory was significantly less than it had been in his previous district.

Gerrymandering on Trial



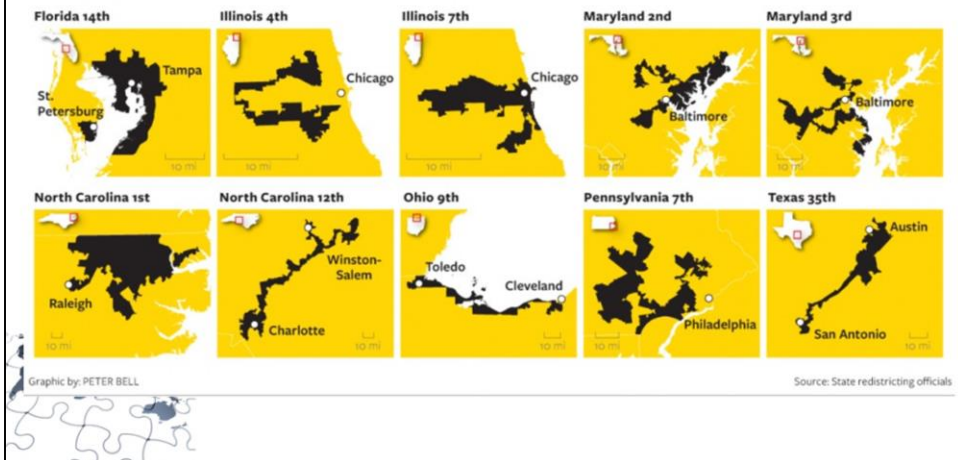
Gerrymandering occurs at the state legislature level as well. Texas House District 90 was the subject of a recent US Supreme Court ruling in which the justices determined that the district, which surrounds Fort Worth, Texas, is an "impermissible racial gerrymander" because the Texas legislature changed it to manipulate the percent of the district made up of Hispanic and African-American voters. Gerrymandering based on race is illegal, but it is permissible to manipulate districts based on socioeconomic levels (education and income).

Court cases are a consequence of gerrymandering as states may be sued for drawing districts in a way that violates the 15th Amendment and later the Voting Rights Act (which bans discrimination within the political process based on race, national-origin, or gender). Courts, in turn, can order that the boundaries be redrawn under the supervision of the courts or an independent review board. Prior to 2013, several states with a history of racial discrimination (Texas included) had to have the judicial review board pre-approve any changes to voting laws within the state. This dates back to the era of Jim Crow (systemic racial discrimination and segregation) in the South that began soon after the Civil War ended and the institution of slavery was abolished with the passage of the 13th Amendment to the US Constitution.

Most Gerrymandered Districts

Modern Gerrymanders

These newly drawn congressional districts are among the most contorted in the nation. In some places, their appendages are not much wider than a highway.



The map above shows the “most gerrymandered” districts in the US. Notice Texas’s 35th Congressional District is included – this is Lloyd Doggett’s district as discussed earlier.